

109	Home Mortgage Alliance Corporation (HMAC) vs. Turturro, 24-01402022	Defendants, Michael Turturro (“Turturro”); OCMBC, Inc. (“OCMBC”); and Jet Alliance (collectively, “Defendants”), move for an order bifurcating the liability and punitive damages phases of the trial of this action and excluding evidence of all Defendants’ financial condition during the liability phase, pursuant to Civil Code section 3295(d). Plaintiff, Home Mortgage Alliance Corporation (HMAC) dba Jet Mortgage, and Cross-Defendant Alfred Hanna, do not oppose the motion to bifurcate which seeks to bifurcate the liability and punitive damages phases of trial pursuant to Civil Code section 3295(d). Civil Code section 3295(d) provides in relevant part, “The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud.” “The purpose behind Civil Code section 3295, which allows bifurcation and preclusion of evidence of a defendant’s wealth and profits during the liability phase of trial, is to minimize prejudice prior to the jury’s determination of a prima facie case of liability for punitive damages. [citation omitted] However, such evidence is not to be excluded on the basis of prejudice when the information is relevant to liability.” (<i>Notrica v. State Compensation Ins. Fund</i> (1999) 70 Cal.App.4th 911, 940. “As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant’s wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant’s “deep pockets” before they determine these threshold issues.” (<i>Torres v. Automobile Club of So. Calif.</i> (1997) 15 Cal.4th 771, 777-78.) Here, Plaintiff’s Second Amended Complaint seeks punitive damages against Defendants. There is no
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		indication that evidence of Defendants' profits or financial condition is relevant to liability. To minimize the potential prejudice to Defendants and pursuant to Civil Code section 3295(d), the Court GRANTS Defendants' motion to bifurcate the liability and punitive damages phases of trial, and to exclude evidence of Defendants' financial condition during the liability phase of trial. <i>Defendants to give notice.</i>
110	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<u>Motion for Summary Judgment</u> Plaintiff ZHEJIANG ZHESHANG ASSET MANAGEMENT CO., LTD. will and hereby does move the court for an order granting Summary Judgment on Plaintiff's Complaint Seeking Recognition and Enforcement of Foreign Country Money Judgment (Code of Civ. Proc. §§ 1713 et seq.) ("Complaint") on file in this matter. Initially, 81 days' notice is required on a motion for summary judgment. CCP §437c(a). This motion was filed on 3/3/2026. It was served on Defense counsel via email on the same date. Notably, it appears the original hearing date for the motion July 30, 2026; however, that date was crossed out and September 24, 2026 inserted. Defendants argue they had no notice of the new hearing date. However, it appears that Defendants clearly had notice of the September 24, 2026 hearing date as they signed a stipulation to continue the September 8, 2026 trial to obtain a ruling on this dispositive motion. (Declaration of Lin ¶¶7-10, Ex. A.) The stipulation was signed on March 23, 2026. Clearly, Defendants have had more than 81 days notice of this motion. As this evidence was submitted with the reply, Defendants should be prepared to respond with any arguments refuting it at the hearing. Where, as here, plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a "cause of action" entitling plaintiff to judgment. [CCP § 437c(p)(1).] Once the plaintiff has met that burden, the defendant has the burden to set forth specific facts showing that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Id.) Here, the First Amended Complaint has one cause of action for Recognition and Enforcement of Foreign-Country Money Judgment.